

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
FREDDY E. DIAZ and ADRIANA DIAZ,

Plaintiffs,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
RYAN PRIZEMAN, POLICE OFFICER MCMANUS
and JOHN and JANE DOES – Police Officers
as yet unidentified,

Defendants.

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

DEFENDANT'S ADDRESS:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

THE NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, New York 10038

POLICE OFFICER RYAN PRIZEMAN
106 Precinct
103-53 101st Street
Ozone Park, NY 11417

POLICE OFFICER MCMANUS
106 Precinct
103-53 101st Street
Ozone Park, NY 11417

Dated: Brooklyn, New York
January 27, 2017

Index #
Date of filing:

Plaintiffs designate
Queens County as the
place of trial

Basis of the venue is
Location of the accident

SUMMONS

Plaintiffs reside at:
156-39 75th Street
Howard Beach, NY 11414
County of Queens

PLAINTIFF'S ATTORNEYS:

RUBENSTEIN & RYNECKI, ESQS.
16 Court Street, Suite 1717
Brooklyn, New York 11241
(718)522-1020

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
FREDDY E. DIAZ and ADRIANA DIAZ,

Index No.:

Plaintiffs,

COMPLAINT

-against-

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, POLICE OFFICER
RYAN PRIZEMAN, POLICE OFFICER MCMANUS
and JOHN and JANE DOES – Police Officers
as yet unidentified,

Defendants.

-----X

Plaintiffs by their attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the
defendants herein, upon information and belief, respectfully shows to this Court, and alleges as
follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR FALSE
ARREST ON BEHALF OF FREDDY E. DIAZ**

1. That at all times hereinafter mentioned, plaintiffs were and still are residents of
the County of Queens, City and State of New York.
2. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK,
was and still is a municipal corporation, duly organized and existing pursuant to the laws of the
State of New York.
3. That the defendant, THE CITY OF NEW YORK, maintains a police force known
as the NEW YORK CITY POLICE DEPARTMENT.
4. That prior hereto on July 29, 2016, and within the time prescribed by law, a
sworn Notice of Claim stating, among other things, the time when and place where the injuries
and damages were sustained, together with plaintiff’s demands for adjustment or payment

thereof, and that thereafter the CITY OF NEW YORK, refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. That on October 28, 2016, pursuant to the General Municipal Law, Statutory 50-H hearings were held.

6. That on May 4, 2016, and at all times hereinafter mentioned and upon information and belief, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, employed POLICE OFFICER RYAN PRIZEMAN, POLICE OFFICER MCMANUS and JOHN and JANE DOES-Police Officers as yet unidentified, as agents, servants and/or employees.

7. That on May 4, 2016, and at all times hereinafter mentioned and upon information and belief, the plaintiff, FREDDY E. DIAZ, was lawfully present at or near the intersection of 78th Street and 156th Avenue, County of Queens, City and State of New York.

8. That on May 4, 2016, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER RYAN PRIZEMAN, POLICE OFFICER MCMANUS and JOHN and JANE DOES-Police Officers as yet unidentified, were working within the scope of their employment and authority with defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, when they arrested and confined the plaintiff, FREDDY E. DIAZ.

9. That on May 4, 2016, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

10. That as a result of the aforesaid false arrest and confinement, plaintiff, FREDDY E. DIAZ, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress and injuries.

11. By the reason of the foregoing, the plaintiff, FREDDY E. DIAZ, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF FREDDY E. DIAZ**

12. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "11" inclusive with the same force and effect as if more fully set forth at length herein.

13. That on May 4, 2016, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER RYAN PRIZEMAN, POLICE OFFICER MCMANUS and JOHN and JANE DOES-Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff.

14. That defendants, POLICE OFFICER RYAN PRIZEMAN, POLICE OFFICER MCMANUS and JOHN and JANE DOES-Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff against his will and said confinement was not privileged.

15. By the reason of the foregoing, the plaintiff, FREDDY E. DIAZ, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION
FOR NEGLIGENT HIRING AND RETENTION ON
BEHALF OF FREDDY E. DIAZ**

16. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "15" inclusive with the same force and effect as if more fully set forth at length herein.

17. Defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER RYAN PRIZEMAN, POLICE OFFICER MCMANUS and JOHN and JANE DOES-Police Officers as yet unidentified, who falsely imprisoned and violated the civil rights of the plaintiff, FREDDY E. DIAZ.

18. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, had prior knowledge of the inappropriate, unlawful, and Improper conduct of the defendants, POLICE OFFICER RYAN PRIZEMAN, POLICE OFFICER MCMANUS and JOHN and JANE DOES- Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

19. By the reason of the foregoing, the plaintiff, FREDDY E. DIAZ, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF FREDDY E. DIAZ**

20. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "19" inclusive with the same force and effect as if more fully set forth at

length herein.

21. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER RYAN PRIZEMAN, POLICE OFFICER MCMANUS and JOHN and JANE DOES-Police Officers as yet unidentified, were acting under the color of law and within the scope of their authority, arrested and imprisoned the plaintiff, FREDDY E. DIAZ, in violation of 42 U.S.C.A. section 1983 as well as other applicable state and federal laws.

22. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER RYAN PRIZEMAN, POLICE OFFICER MCMANUS and JOHN and JANE DOES-Police Officers as yet unidentified, acting under color of law and within the scope of their authority, deprived the plaintiff, FREDDY E. DIAZ, of liberty without due process and without reasonable cause in violation of 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

23. The defendants had deprived the plaintiff by their actions of his civil rights as guaranteed by statute.

24. That the arrest and imprisonment was in violation of the civil rights of the plaintiff, more particularly, 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

25. That the deprivation by the defendants of plaintiff's civil rights was a result of said defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER RYAN PRIZEMAN, POLICE OFFICER MCMANUS and JOHN and JANE DOES-Police Officers as yet unidentified, acting under color of law and within their authority as law enforcement officers within the

employ of defendants, THE NEW YORK CITY POLICE DEPARTMENT.

26. That the defendants' actions were not privileged or immune.

27. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER RYAN PRIZEMAN, POLICE OFFICER MCMANUS and JOHN and JANE DOES-Police Officers as yet unidentified, were not acting with immunity when they deprived plaintiff of his civil rights.

28. By the reason of the foregoing, the plaintiff, FREDDY E. DIAZ, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF FREDDY E. DIAZ**

29. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "28" inclusive with the same force and effect as if more fully set forth at length herein.

30. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

31. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to defendants POLICE OFFICER RYAN PRIZEMAN, POLICE OFFICER MCMANUS and JOHN and JANE DOES-Police Officers as yet unidentified, herein-above alleged.

32. By the reason of the foregoing, the plaintiff, FREDDY E. DIAZ, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, ADRIANA DIAZ

33. That at all times hereinafter mentioned, plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "32" herein, as though more fully set forth herein at length.

34. That at all times hereinafter mentioned, the plaintiff, ADRIANA DIAZ, was the lawful spouse of the plaintiff, FREDDY E. DIAZ, and as such plaintiff, ADRIANA DIAZ, was entitled to the society and services of the plaintiff, FREDDY E. DIAZ.

35. By reason of the afore-described negligence of the defendants, the plaintiff, ADRIANA DIAZ, was deprived of the society and services of the plaintiff, FREDDY E. DIAZ, and shall forever be deprived of said society and services.

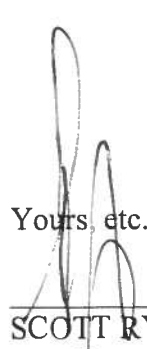
36. As a result of the afore-described negligence, the plaintiff, ADRIANA DIAZ, expended diverse sums of money in payment of the expenses incurred for medical care, treatment and hospitalization for the plaintiff, FREDDY E. DIAZ.

WHEREFORE, plaintiff, FREDDY E. DIAZ, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, FREDDY E. DIAZ, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, FREDDY E. DIAZ, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, FREDDY E. DIAZ, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, FREDDY E. DIAZ, demands judgment both compensatory and exemplary in an amount exceeding the

jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; plaintiff, ADRIANA. DIAZ, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth** Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
January 27, 2017

Yours, etc.,



SCOTT RYNECKI, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiffs
FREDDY E. DIAZ and ADRIANA DIAZ
16 Court Street Suite 1717
Brooklyn, New York 11241
(718) 522-1020

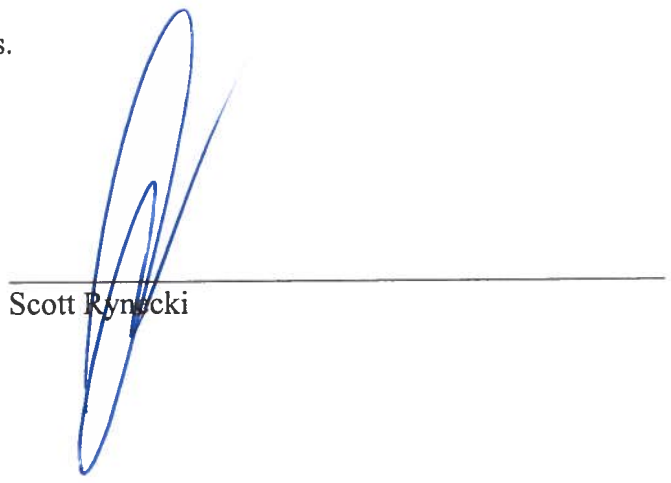
ATTORNEY'S VERIFICATION

SCOTT RYNECKI, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner at RUBENSTEIN & RYNECKI, attorneys of record for Plaintiff, in the action within. I have read the annexed **COMPLAINT**, and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

I make the foregoing affirmation because Plaintiff(s) is/are not presently in the county wherein I maintain my offices.

DATED: Brooklyn, New York
February 17, 2017



Scott Rynecki

NOTICE OF ENTRY

PLEASE take notice that the within is a (*certified*) true copy of a duly entered in the office of the clerk of the within named court on

Dated,

Yours, etc.

RUBENSTEIN & RYNECKI ESQS.

Attorneys for

Office and Post Office Address
16 COURT ST.
BROOKLYN, N.Y. 11241

To

Attorney(s) for

NOTICE OF SETTLEMENT

PLEASE take notice that an order

of which the within is a true copy will be presented for settlement to the Hon.

one of the judges of the within named Court, at

on

at

M.

Dated,

Yours, etc.

RUBENSTEIN & RYNECKI ESQS.

Attorneys for

Office and Post Office Address
16 COURT ST.
BROOKLYN, N.Y. 11241

To

Attorney(s) for

Index No.

Year

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Defendants.

Signature (Rule 130-1.1-a)

SUMMONS AND VERIFIED COMPLAINT

Print name beneath

RUBENSTEIN & RYNECKI ESQS.

Attorneys for

Office and Post Office Address, Telephone
16 COURT ST.
BROOKLYN, N.Y. 11241
(718) 522-1020

To

Attorney(s) for

Service of a copy of the within is hereby admitted.

Dated

.....

Attorney(s) for

1500 - Blumberg Executor Inc., NYC 10013